



Participatory construction of futures for the defense of human rights

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ABSTRACT

Participatory design allows for designing speculative futures through a collaborative approach. This paper explores how a human rights defense non-governmental organization (NGO) and a group of designers could explore speculative futures collaboratively. It also reflects on how prototypes of these futures help the organization face potential changes in the country's social model to make an impact on the defense of human rights during the next ten years. This case study presents how the use of participatory design and speculative design can allow NGOs to explore the futures, identify the opportunities and challenges they offer, and co-design a roadmap to act accordingly.

CCS CONCEPTS

• **Human-centered computing** → Interaction design ; Interaction design process and methods ; Participatory design; Interaction design ; Interaction design process and methods ; Scenario-based design.

KEYWORDS

Participatory design, speculative design, speculative prototypes, human rights defense

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1 INTRODUCTION

In 1991, the modification of the Colombian Political Constitution changed the central axis of the state from a religious government as an essential element of the social order [1] to a rule of law country, founded under the principles of respect for human dignity, solidarity, and prevalence of the general interest [2]. This transformation recognized the adoption of a liberal legal form of government and has allowed the country to have policies to protect the rights and provide equal conditions and guarantees of life for people including minorities.

One of these minorities consists of lesbians, gays, bisexuals and transgenders (LGBT) who, thanks to the Constitutional Court, have been granted rights such as: de facto marital union (civil marriage) [3] and adoption [4]; legal protection against discrimination in labor [5] and heritage matters [6]. Nevertheless, the defense of human rights in Colombia remains as a tough arena in which more than 530 Non-Governmental Organizations (NGOs) [7] fight to overcome discrimination. In these battles, prosecuted from the legal sphere, one NGO, Colombia Diversa, stands out from the rest. This NGO has dedicated important efforts in the area of research and strategic litigation to achieve political impact on the human rights defense of the LGBT community [8].

Although these achievements protect the rights of LGBT and other populations in Colombia, the defense of human rights in order to overcome discrimination remains a challenge in this country. There are still some manifestations that defy the ground rules

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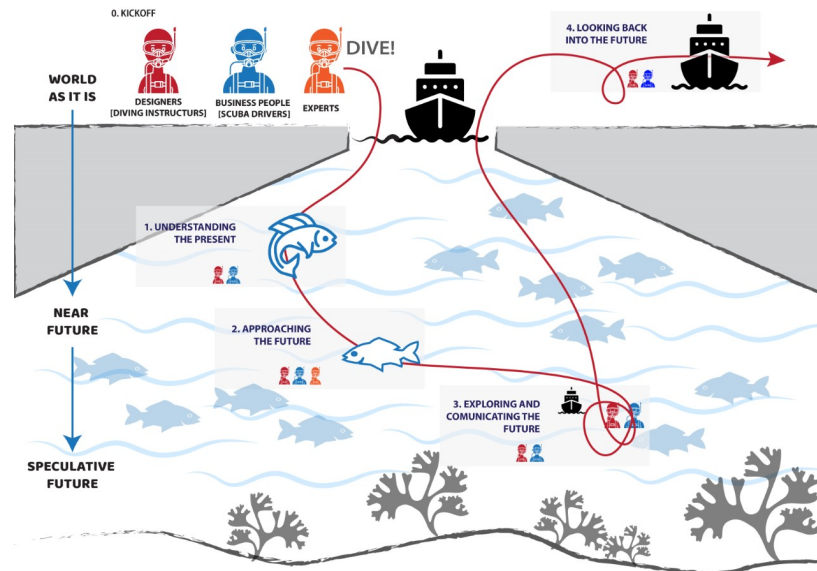


Figure 1: DIVE based on Mejía et al.

provided by the constitution of Colombia and withstand the regulatory work made by the Constitutional Court. An example is the proliferation of “anti-human rights” messages by those who persist that religious and moral ideals should prevail over legal guidelines. Considering this situation, Colombia Diversa foresees, as part of its strategic planning, a potential future rooted in a state based on religious morals and not on the constitutional terms provided in the law. This image of the future would translate, according to them, into a “social setback in terms of the rights obtained for the LGBT population”.

This paper explores how Colombia Diversa and a group of designers could explore speculative futures collaboratively and how prototypes of these futures could help the organization face the possible backward legislative movement described earlier.

2 DIVE: DESIGN, INNOVATION, VISION, AND EXPLORATION

In order to accomplish this aim, three representatives of Colombia Diversa (the CEO, the Communications Manager and the Communications Officer) worked together alongside eight designers with diverse backgrounds (design, engineering and communication) and expertise (from 1 to 15 years of experience). All of these professionals were involved in most steps as integral part of the process. In addition, different external collaborators and experts were called upon to help guide the process and to collect data from their fields of expertise. These fields ranged from politics to economics all the way to LGBT rights. This whole process was developed in the master’s course “Speculative Design” offered at the University of Los Andes located in Bogotá, Colombia, for three hours a week for 16 weeks.

Due to the fact that the problem relies on the exploration of futures, the designers used speculative design as an approach to develop a participatory design case study. Speculative design focuses on the envisioning of alternative futures used as new perspectives that transform beliefs, values, attitudes and behaviors of human beings [9] and thus develop imaginative and reflective capacities to challenge the present situation. This approach allows the free exploration of opportunities, using design as a language to ask questions, provoke and inspire contexts [10]. The exploration of alternative futures allows designers and company representatives to understand the possible contexts where the organization should navigate and imagine different strategies that allows them to overcome the possible difficulties from a critical construction.

Within speculative design, we used Design, Innovation, Vision, and Exploration (DIVE) [11] (Figure 1), a design futures technique that helps designers to create and share prototypes of the future. DIVE demonstrates its strategic value by identifying opportunities and risks when envisioning the futures of small organizations.

DIVE uses an analogy, a plunge into the waters of speculative futures, structured in four steps. It begins by (i) **understanding the present context** by analyzing an organization and establishing a domain, the focus area in which designers intend to contribute [11], and a time horizon using the metaphor of a fish. Then designers and organization representatives (ii) **approach the future** focusing on the waves, the context factors in which the fish will swim. Having finished both analyses, internal through the fish and external along the waves, participants (iii) **explore and communicate the future**, creating a vision of the future that guides the fish in facing the waves. This vision consists of a statement that describes what designers want to offer to people within the domain [12]. This vision is materialized into prototypes and videos that,

according to previous experiences, are vital to share these visions with the organization representatives, but more importantly, to shape and detail these fictitious products and services in a tangible form. When exploring the futures, designers imagine, experiment, test, select, transform, develop and complete early ideas by making different prototypes: sketches, diagrams and models [13]. In this activity, the futures are no longer a linear process or a sequence of events from the past, i.e. a timeline, but a space of opportunities [14]. This space of opportunities can be presented within various scenarios or alternative futures that Hinchey classifies as: possible futures, plausible futures and probable futures [15]. This process ends with **(iv) looking into the future** in which participants discuss the futures and the present of the organization. Previous cases demonstrated that DIVE's analogy drives companies to explore potential futures smoothly.

3 RESULTS

As the result of the internal analysis, the designers understood that Colombia Diversa has very strong capability in the areas of research and strategic litigation supported by the abilities of its diverse team of highly-skilled professionals and a large group of allies that help the development of its mission. However, the organization has an imbalance in regards to its small-scale infrastructure that is not enough to respond to the challenges that emerge in a complex context; this is related to the fact that, even though it is a small organization, its large impact leads people to think of a large corporation. Furthermore, the designers observed how its legislative actions follow a clear direction in favor of the rights of the LGBT community and how these actions affect a large number of people. This shows how the organization relies on its allies to achieve its mission and how its work relies mainly on its skills and knowledge rather than its infrastructure.

Throughout the external analysis, the designers uncover that Colombia Diversa faces a society with two possible dichotomous contexts: on the one hand, a society headed by a secular government and, on the other hand, a society under a religious government. In both cases, the role of the individual in society is determined by the influence that government, politics and the media have on their life.

Thanks to desktop research supported by the participatory session, designers defined the domain of this investigation as *“political incidence for the defense of human rights”*. Moreover, the year 2029 was established as a time horizon for allowing the NGO and the designers to project possible futures, taking into account the obvious changes in the context that could become a concern, but also keeping a level of certainty by not being so far away in the future.

Within this domain and in this time horizon, designers discovered several demographic, economic, environmental, political and social context factors to define the framework in which the future will develop. This is represented in two videos.

3.1 Sofia's story: Your body is not yours (<https://youtu.be/w-h6-rPT0YY>)

The first video presents the story of Sofia, a young middle-class woman who lives in a Colombian city in 2029. The situation is framed during the electoral period, and this is where politics and

religion are intertwined, as one of the candidates is a religious leader. The video centers on Sofia's difficulties in obtaining birth control pills, which are in the process of being restricted for sale due to moral reasons. The video explores the loss of individual identity and the limitations of freedoms as a control strategy by the government.

3.2 Laura's story: In your face (https://youtu.be/l28gQAJh_go)

The second video presents the story of Laura, a young woman from the middle-upper class of Bogota's society. As in the previous scenario, the situation is framed during an electoral period, but this time the interaction occurs between politics and the media: a hyper-connected and hyper-controlled world that does not allow individuals to have a disconnected daily life. The existence of the human being is then transformed into an overwhelming experience. Indeed, the excess of information is used as a control strategy.

Both videos tried to imagine the intersection between politics, media and moral affiliation, which for the Colombian case is related to religion and its impact on the lives of individuals as subjects of human rights. These stories were used to give context to the designers and organization representatives to define a future vision:

“In 2022, thanks to its research strengths, Colombia Diversa will make strategic litigation for the defense of the human rights of diverse citizens or for the generation of new legislative tools. Additionally, it will provide tools for the defense of their rights and support that comes from a unified and user-friendly communications area”.

This vision expands the scope of action of the organization, as one of the needs that emerge from the first two steps of DIVE was to include not only LGBT citizens, but also citizens that belong to other well-identified minorities in Colombia (these minorities were named “diverse citizens” by the designers. Moreover, it places more relevance in the communications area of the organization, an area that historically been overlooked in the missional core of Colombia Diversa.

Taking into account this vision, the designers created two prototypes of futures services and products of the NGO:

3.3 Central propeller 2022: We have the power, Colombia Diversa as an agent of legislative change (<https://youtu.be/KmDBVwgQNLU>)

In this prototype, all the investigations and the “know-how” of Colombia Diversa are stored in a great repository of laws against discrimination, the central propeller. This allows Colombia Diversa in 2022 to be an agent of change in legislative matters in a hostile context where legal and legislative decisions are subject to the religious values of the government in office. The video presents the situation where a citizen complaint for a case in which high-cost drugs are denied to a transgender woman joins thousands of complaints for this same type of violation of rights. Here, the central propeller helps Colombia Diversa to identify this type of violation, file a lawsuit and arm itself with litigation strategies that allow it to influence the decisions of the legislative branch. Thus, this seeks to promote new laws that go in this direction or modify

the norms that are used to exclude and violate the rights of diverse citizens.

This prototype was presented in a generative session with an expert whose feedback allowed for the exploration of a new perspective where the current rule of law changes completely. In this new scenario, the existence of Colombia Diversa is tested because its expertise becomes obsolete: it can no longer exert influence exclusively through strategic litigation and must reinvent itself in order to continue defending the rights of diverse citizens.

Based on this new perspective, the team of designers formulated a new vision that proposes a bottom-up approach from individuals, replacing the current top-down strategy of Colombia Diversa, where the intervention is limited to research and strategic litigation.

“In 2029 Colombia Diversa is an organization that encourages the development of community and cooperative networks for the defense of the human rights of diverse citizens. Its technical robustness and strategic litigation, combined with the quality of its communications and its decentralized network of allies and local links, allow the protection of individual rights through collective and collaborative processes”.

Following this new vision and the fact that the role of this NGO could become obsolete under the first explored scenario, the team of designers formulated a second prototype that allowed this new vision to materialize.

3.4 Collaborative shell 2029: Defense of rights from the base, power to the people (<https://youtu.be/xsybDyNg0Jc>)

The collaborative shell is a structure formed by the people in 2029 to encourage the development of community networks that protect individuals from violations of their rights through collective actions in contexts where the law exists. However, its compliance depends on the moral values imposed by the government that permeate society. In fact, the diversity of people and their daily struggles make this shell an effective means for protecting the human rights violations of diverse citizens and for using technology as their ally to make the shell stronger and stronger.

The video presents the situation of Sofia, a young middle-class woman from Bogota, who thinks she may be pregnant. Due to the moral restrictions imposed, she cannot use a contraceptive method to terminate her possible pregnancy, despite the fact that the law states that anyone can buy this medicine. The collaborative shell of Colombia Diversa allows her to connect with a support network in a simple and effective way, making the norm a reality in practice to get the contraceptive mechanism she needs.

This prototype sparked a conversation with the NGO representatives and some of the experts in order to assist designers to map the future of the organization [10] and to expand the range of action for Colombia Diversa to cover plausible futures that were not taken into account yet in the development of the mission statement of the organization.

Designers made use of the prototypes, images and narrative to help participants express their thoughts, feelings and ideas about the future of the organization. Although generative sessions with Colombia Diversa were used in the previous steps, it is in this step

where the participatory design becomes more important. Indeed, this step allowed the designers to draw a route map of the organization based on the comprehension of the present and the exploration of futures carried out in the previous steps. This is completed with remote participatory sessions where other representatives of the organization were given questions to deepen and broaden our understanding of Colombia Diversa and to identify different opinions and ideas within the NGO.

After a final participatory workshop with the NGO representatives led by the designers, the team found that the organization is working today from a perspective of research and strategic litigation. Therefore, the knowledge in this area allows Colombia Diversa to talk or guide the country's policy makers, based on the objective of fighting for LGBT rights.

As part of the analysis of speculative design made by the designers in this stage, it seems that Colombia Diversa should shift to a new paradigm in which the NGO continues to litigate and research, but also focuses on communicating to the communities and working directly with them. Moreover, it is suggested to expand its range of impact from the LGBT population and to address the needs of more people and minorities, expanding into a new perspective of “diverse citizens”. To make this change (2019 - 2029), both teams worked on a participatory roadmap (Figure 2) so they can recognize the future actions. The NGO representatives focused on building communities by using Information and Communications Technologies.

Designers realized that this roadmap could mislead the purpose of reaching communities as these actions are not enough to change the future. Additionally, it is important for the organization to make changes in terms of internal and external organization to address the challenges that this change of paradigm represents (Figure 3). This final step contributed to the design process by materializing concrete actions that were identified in the exploration of futures in a work plan.

4 DISCUSSION

Throughout the development of this case, we have uncovered some benefits and limitations of integrating speculative design with participatory design.

Making the future tangible in a participatory way was key to take advantage of the benefits of these design methods and minimize the impact of the possible limitations they could have. Throughout DIVE, designers, NGO representatives and experts used different participatory approaches in accordance to the conditions described in each of the steps to understand the present, co-create images of alternative futures and map opportunities between these two extremes. In the first two steps and the fourth step, designers facilitated conversations in different formats. During the research, designers developed generative sessions with the NGO representatives when understanding the present and unstructured—Delphi Method [16]—interviews with external experts in diverse fields when approaching the future. Instead of just talking with the decision makers as is standard in other futures studies techniques, conversing with diverse people add to the process of collection and selection of context factors. While the generative session explores latent knowledge, the interviews uncovered explicit knowledge

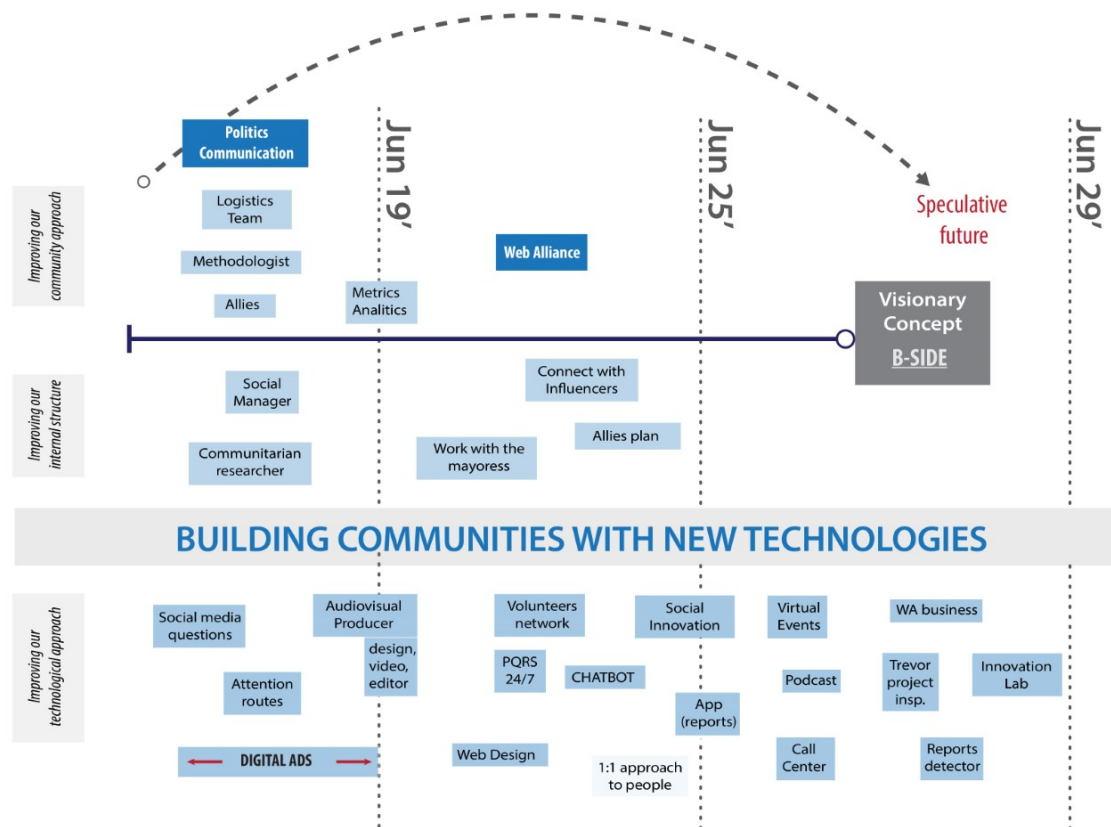


Figure 2: Roadmap for Colombia Diversa – built in a participatory session with the NGO’s representatives and the designers

and both combine external and internal perspectives of the current situation of the organization and the context informed by literature review and observations.

The third step was a creative collaboration by the designers, an ideation, in which their diverse set of skills proved to be useful to make videos and prototypes. Whereas some of them were involved in writing the script, others focused on role playing, the aesthetics of the production or the making of the artifacts. In the fourth and last step, designers also facilitated generative sessions with the NGO representatives to co-design a strategic roadmap. In general, it seems like an image of the future co-created from diverse perspectives could be more comprehensive and richer by collecting more and more diverse opinions about these alternative futures.

Despite the fact that DIVE is a powerful instrument for the NGO representatives to think, talk and act about the future by unfolding comprehensible prototypes and videos, there are certain constraints on this methodology. First, DIVE is a technique specifically designed for small businesses and although it worked well for the case of Colombia Diversa, it will be interesting to explore how DIVE works in larger environments, for instance by involving members of the LGBT community or other minority. Second, the first two steps of DIVE fully define the way in which the following steps are developed which may skew the project from the beginning. This

limitation may be resolved by involving not only the members of the organization and experts but also other relevant actors during this stage, for example allies of Colombia Diversa and LGBT groups.

Furthermore, more general limitations are related to the fact that there was not much variety within the opinions that designers could reach throughout the participatory sessions. This could be explained by the existence of the personal biases within the team but also given the fact that most of the meetings were with only one of the areas of the NGO, the communication department. This created a skew in opinions in regards to what may the internal organization of the NGO, and in which kind of strategies should be most focused when discussing the road map. Moreover, one of this project’s biggest challenges was to make sure that the NGO representatives’ feedback remained helpful and non-repetitive for the multiple iterations of the design process. The designers were able to overcome this by including different socializing opportunities of face-to-face design sessions and remote participatory sessions.

It is evident that there is little presence of LGBT stakeholders in the design process. Due to the fact that this exercise was developed in an academic context, large-scale participation was not possible to implement. Still, this exercise could be strengthened by involving members of this community and other minorities so that they may

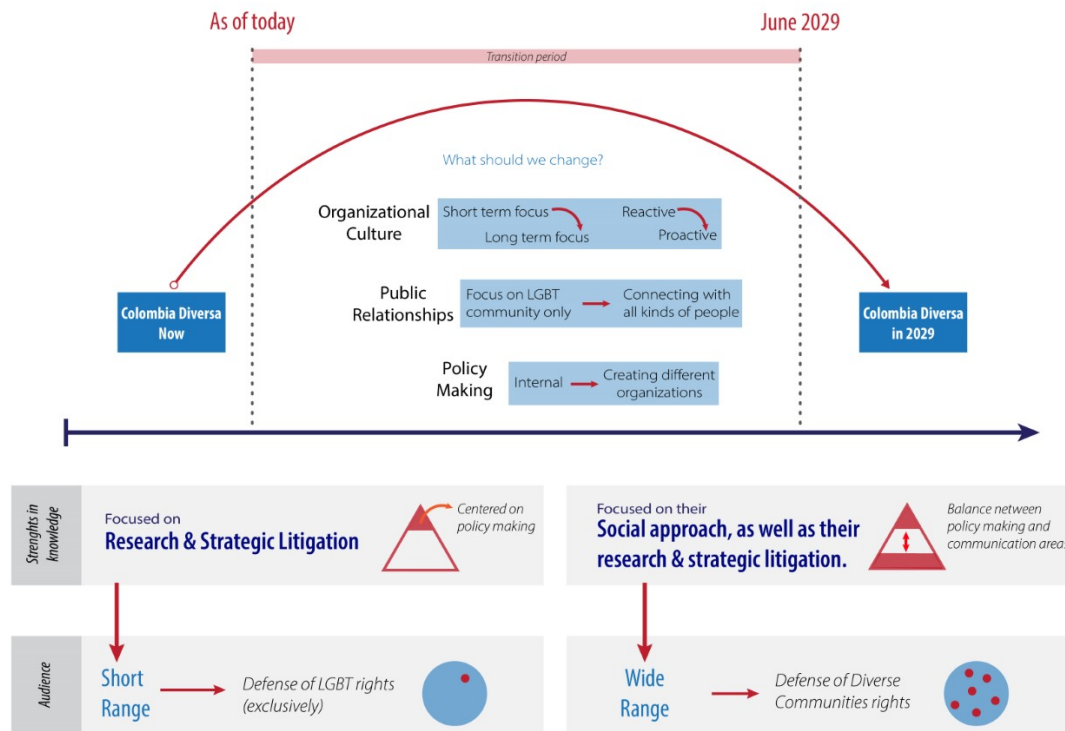


Figure 3: Suggested complementary roadmap for Colombia Diversa – built in a participatory session of the designers

feel represented within the exercise and also by Colombia Diversa in regards to the guarantee of their human rights.

Knowing the complexity of exploring the alternative futures, designers wonder about the possibility to conduct a non-linear design process in which every outcome is produced simultaneously. When approaching the future, designers encouraged the NGO representatives to see the future as a space of opportunities and not just as a timeline, a somewhat predictable, inflexible sequence of events derived from the past. This allowed the NGO representatives to develop their ideas with more freedom throughout the process, obtaining more interesting results. While it is clear that most design processes try not to abide themselves by restrictive structures in order to explore and consider alternative design solutions, the existence of established steps within the design process has a considerable impact in the development –and most importantly– in the outcome of the creative process. This makes designers curious about the full advantage of what design can do when it comes to redefining limits and reaching new, unforeseen proposals and ideas.

5 CONCLUSIONS

This study set out to understand how Colombia Diversa could use participatory design to co-create images of the future based on a speculative design technique. The evidence from this study suggests

that the use of participatory strategies allowed Colombia Diversa and the designers to co-create alternative futures.

This participatory design process resulted in a road map that traces the challenges of the alternative futures that Colombia could face, one of them could be rooted in a state based on religious morals, which could translate into a social setback in terms of the rights obtained for the LGBT community. The following conclusions can be drawn from the present study:

1. By carrying out this participatory and speculative design process, the designers learned that even though NGOs are often fearful about what the future may bring, they are strong advocates for one in which there is an opportunity for the defense of human rights. The interaction between participatory design and speculative design could lead to positive and easy-to-implement techniques to transform these fears into opportunities for action.
2. There was a difficulty in the process that the team perceived during the co-creating sessions that was caused by both a lack of facilitation skills by the design team as well as a disparity in rank within the NGO representatives, which led to some sessions not being fully exploited. In an optimal scenario, the design team should have better facilitation skills that could contribute in a significant manner to the development of the design process. Also, it should be assured

that at least one member of each area of the organization is involved in the design process.

3. Further research might explore to re-create the project in another case similar to this one. This could result in a broader understanding on how participatory design (and speculative design) may be beneficial when utilized with NGOs and other non-profit organizations.
4. This exercise has proven that it is not necessary to exclude structures to explore the future in alternative ways. By following a set of steps that guided the exploration methodologically, it became possible to assume more imaginative and innovative postures. In a similar way, it could open a space to re-design the steps of the creative process, and enhance the advantages provided by existent methodologies. Thus, making freedom a characteristic of the creative design process while maintaining a certain structure may be beneficial for the consolidation of more collaborative and explorative processes.

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